



CHAPTER lxii.

An Act to confirm a Provisional Order made by the Board of Trade under the Electric Lighting Acts 1882 to 1909 relating to Kingstown. [8th July 1914.]

WHEREAS under the authority of the Electric Lighting Acts 1882 to 1909 the Board of Trade have made the Provisional Order set out in the schedule to this Act:

45 & 46 Vict. c. 56.
51 & 52 Vict. c. 12.
9 Edw. 7. c. 34.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Electric Lighting Order Confirmation (No. 8 Kingstown) Act 1914.

2. The Order as amended and set out in the schedule to this Act is hereby confirmed and the same shall from and after the passing of this Act have full validity and effect.

Order in
schedule
confirmed.

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SCHEDULE.

KINGSTOWN ELECTRIC LIGHTING.

Kingstown. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 to 1909 to the Dublin Southern District Electric Supply Company Limited in respect of the urban district of Kingstown in the county of Dublin.

Short title. 1. This Order may be cited as the Kingstown Electric Lighting Order 1913.

Incorporation of Electric Lighting (Clauses) Act 1899. 2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 83 of that schedule) are incorporated with and form part of this Order.

Undertakers. 3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Dublin Southern District Electric Supply Company Limited whose registered office is at No. 16 College Green in the city of Dublin.

Area of supply. 4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to break up streets &c. 5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets and parts of streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways and tramways which are also mentioned in that schedule.

Saving for Commissioners of Kingstown Harbour. 6. Nothing in this Order contained shall authorise the Company to break up or in any manner interfere with any street road or other property of the Commissioners of Kingstown Harbour without their previous assent and approval signified in writing under the hand of their secretary.

Compulsory works. 7. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the

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commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. A.D. 1914.
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8. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those set forth in the Fourth Schedule to this Order. Maximum prices.

9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is five hundred pounds. Deposit.

10.—(1) The powers given by this Order shall not without the consent of the council be exercised for a period of six months or such extended period not exceeding in the whole twelve months as the Board of Trade allow after the passing of the Act confirming this Order unless within that period the Undertakers have transferred the undertaking to the urban district council of Kingstown (herein called "the council"). As to transfer to Kingstown Urban District Council.

(2) Within that period the Undertakers shall by deed to be approved by the Board of Trade transfer and the council shall take a transfer of the undertaking on such terms of payment for the said transfer of the undertaking to the council as may (failing agreement) be settled by arbitration.

(3) In settling the terms of payment for the undertaking the council shall not be liable for any obligations entered into by the Undertakers or for any obligations of any sort whatever or for any outlay other than that reasonably and properly incurred in regard to the promotion of this Order and of the Bill to confirm the same and the costs of forming the company such costs not to exceed one hundred and fifty pounds.

(4) On such transfer the rights powers and authorities of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the council and the council shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(5) Any sum which may be paid by the council to the company under the provisions of this section together with the costs and expenses of the council in opposing the present Bill to confirm this Order shall be treated as capital expenditure of the undertaking and shall be subject to the provisions of section 8 of the Electric Lighting Act 1882.

11. If the Blackrock Urban District Council or the Dalkey Urban District Council by notice in writing require the Undertakers to give them a supply of electric energy in bulk the Undertakers As to supply to Blackrock and Dalkey Urban District Councils.

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A.D. 1914. shall apply for an order permitting such supply under section 4 of
Kingstown. the Electric Lighting Act 1909 and if such order is made shall give
such supply on such terms and conditions and from such date as
failing agreement may be determined by an arbitrator appointed by
the Board of Trade Provided that the Blackrock Urban District
Council shall not be entitled to serve such notice after the expiration
of a period of six months from the date of the transfer of the
undertaking to the council.

Revision of
prices so as
to balance
revenue and
expenditure.

12. When the Kingstown Urban District Council (hereinafter called
“the district council”) shall have become the Undertakers for the
purposes of this Order the following provisions shall apply:—

(1) The district council shall so soon as the annual statement of
accounts of the undertaking has been filled up in the form
prescribed by the Board of Trade under the Electric
Lighting Act 1882 publish in a newspaper circulating in
the urban district of Kingstown a notification that such
statement of accounts has been filled up and that copies of
it can be obtained at the offices of the district council at
a price not exceeding one shilling a copy and such
publication shall be in addition to and not in substitution
for any publication prescribed by the Board of Trade under
the Electric Lighting Act 1882:

(2) The district council shall on the expiration of the fifth
complete financial year after they have commenced to
supply electrical energy under this Order and on the
expiration of each third succeeding year reconsider and
if necessary revise and thereafter maintain the scales of
prices charged for electrical energy under this Order so that
as far as is reasonably practicable no rate will be required
for the purpose of defraying the future expenses of the
said undertaking during the next three years Provided
nevertheless that—

(a) the prices to be charged shall not exceed the
maximum prices which may be charged under this
Order;

(b) the scales of prices so reconsidered and revised
may be from time to time in like manner reconsidered
and revised by the district council:

(3) Nothing in this section contained shall prevent the district
council from entering into contracts for periods which
may extend beyond the periods at which any revision
may take place under the provisions of this section on
special terms under special circumstances not applicable
to ordinary consumers but each such contract shall

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provide that the price to be charged for energy supplied under such contract shall either—

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(a) be subject to revision at the next triennial revision provided for in this section; or

(b) vary in the same proportion as the prices charged to ordinary consumers:

Provided that the district council shall not without their consent be required to accept any price lower than the minimum price mentioned in such contract:

- (4) There shall not be made against the district rate or any other rate for energy used by the district council for street lighting or any other purpose a charge at a higher price than that charged to consumers using energy for similar purposes and for the like hours of supply.

13. This Order shall come into force upon the day when the Act confirming this Order is passed and that day shall be the commencement of this Order.

Commence-
ment of
Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Kingstown as constituted at the commencement of this Order.

SECOND SCHEDULE.

Streets and parts of streets not repairable by the local authority and the railways and tramways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS:—

Elton Park from Sandycove Road to Sandycove Tennis Club the road leading from Royal Marine Road to Royal Marine Hotel the road leading from Glenegeary Hill to Cullelen and Willowdale the roads leading from Queen's Road to Carlisle Pier the Victoria Wharf and Jetty Harbour Road north of the Dublin and South Eastern Railway from Kingstown Railway Station to Salthill Railway Station West Pier

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A.D. 1914. Dunleary Pier Traders Wharf Carlisle Pier and East Pier the roadways
Kingstown. on the bridges carrying the following roads over the Dublin and South
Eastern Railway viz. Castle Park Road Albert Road Adelaide Road
Eden Road Summerhill Road the road leading from Longford Terrace
East to Queen's Road Queen's Road road leading from Kingstown
Town Hall to Queen's Road road leading from Clarence Street to Coal
Quay.

(b) RAILWAYS :—

The level crossing of the Dublin and South Eastern Railway on—

- (1) The road from Dunleary to the West Pier :
- (2) The road leading from Coal Quay Bridge to the Royal
Irish Yacht Club :
- (3) The road from the Royal Irish Yacht Club to Victoria Wharf :
- (4) The road from the Royal St. George Yacht Club to the
East Pier.

(c) TRAMWAYS :—

The tramways of the Dublin United Tramways Company.

THIRD SCHEDULE.

*Streets and parts of streets throughout which the Undertakers are to lay
down suitable and sufficient distributing mains for the purposes of
general supply within a period of two years from the commencement
of this Order.*

Longford Terrace De Vesci Terrace George's Street Lower from
Carnegie Library to George's Street Upper Royal Marine Road Eblana
Avenue Crofton Road from Royal Marine Road to Royal Mail Hotel
George's Street Upper Adelaide Street Clarinda Park Haddington
Terrace Victoria Terrace Marine Terrace Longford Terrace East
Summerhill Road from Upper George's Street to Rosmeen Gardens
Rosmeen Gardens Glasthule Sandycove Road Sandycove Avenue West
Breffni Road Castle Park Road from Breffni Road to Elton Park Elton
Park.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the supply contained in a
current of one thousand ampères flowing under an electric
motive force of one volt during one hour.

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SECTION 1.

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Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

Printed by EYRE and SPOTTISWOODE, LTD.,

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